

*Mikisew Cree by Kate Bond*

*I used to work as a wildfire lookout in northern Alberta. I did the job for four years. When I made this project in 2011, for Professor Jackson's seminar in my final term of law school, it hadn't been long since my last season in the woods.*

*The boreal forests have been called "the spruce kingdom"—millions upon millions of square kilometers of black spruce, jack and lodgepole pine, trembling aspen, thickets of blueberry, willow, water birch, prickly rose; fireweed and yarrow and ox-eye daisies; lynx, moose, arctic hare, caribou, beaver, bears—also industry roads, cutlines, drill sites. Snow in June, lightning fires in August. The silence is absolute, except for the wind in the trees, the birdcalls, the thump of grouse, and at night, the howling of the timber wolves. The high wind carries the lonely fragrance of boreal trees; sometimes—at closer range—the dizzying, sugary scent of red clover thickets. The wind clears the biting flies and mosquitoes, but in the close air of the forest they mercilessly reassemble.*

*The world we inhabit in the city exists in a different plane from that of the woods. I liked studying law but in every fibre I ached to go back. I was "homesick" for the northern forest the first time I read Mikisew Cree, and experienced with a vague sense of disquiet the same landscape as seen through the law's sharp-focused, monochrome lens. My little "graphic novelization" wasn't intended as a critique of the judgment or its statement of the law. I guess if there's a thesis to the project it has to do with a sense of fatalism over a court of law, or law itself, being able to grasp all the relevant points and points of view that any real story's made up of. It's a thesis that I'm not really able or qualified to articulate myself when it comes to Indigenous land and land-rights claims. I may have tasted the sweetness of life in the boreal forest, for a few years, but I can't know what real, inherited existence there consists of, life for people like, say, the claimants in Mikisew Cree whose livelihoods, and more, were at stake. To the extent I can conceive of what it means to them, my sympathy's immeasurable.*

*The Cree characters living in the north, in my depiction, are all based, roughly, on people I met in those years working in the woods, as are the industry workers. The lawyer and law student characters are all based in reality too. The character Josh Marten is fictional.*

*Part of my intention was to present the "story" (stories?) as highly fragmented and disparate (as well as not requiring additional exposition/explanation, other than (presumed on the part of law students/lawyers) that Mikisew Cree is a major Supreme Court of Canada case dealing with treaty and constitutional rights): my hope is that the various characters and their relationships (or lack thereof) to the issues central to Mikisew would be inferred if not always clear from the dialogue and structure (contrasting the Indigenous longtime/year-round residents of the remote communities, for example, with the transitory/seasonal*

*presence of resource workers and researchers; likewise contrasting the immediacy and impact on everyday life for those actually affected with the workaday detachment of the lawyers (on all sides) and law clerks; conveying (I hope) the difference in the case's significance to law students depending on the perspective each brings to bear on the decision; Justice Binnie as a character I left deliberately somewhat opaque, in the nature of judges; and my hope is that the end sequence strikes a balance among the hope, stoicism and realism with which these high-level decisions are met by those affected, and a realistic/pessimistic outlook on their individual effect*